

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-12

DOLLAR GENERAL LOGISTICS, LLC

v.

YANG MING MARINE TRANSPORT CORP.

JOINT STATUS REPORT

Pursuant to the Presiding Officer's August 12, 2025 Scheduling Order (the "Scheduling Order"), Complainant Dollar General Logistics, LLC ("Complainant" or "Dollar General"), and Respondent Yang Ming Marine Transport Corp. ("Respondent" or "Yang Ming") (Dollar General, collectively with Yang Ming, the "Parties"), by their respective undersigned counsel hereby submit this Joint Status Report.

1. As an initial matter, the Parties note that the Joint Motion to Extend Deadlines, dated October 24, 2025 (the "Schedule Extension Request")¹ remains pending. For the reasons stated in the Schedule Extension Request, and additionally in light of the recent federal government shutdown and related tolling issues, the Parties continue to believe that good cause exists for the Presiding Officer to grant the Schedule Extension Request.

2. As to the status of discovery, the Parties continue to work diligently and cooperatively during the discovery process. As discussed in the Parties' previous Joint Status

¹ Although the Parties submitted the Schedule Extension Request on October 24, 2025, due to the shutdown of the U.S. federal government, the Schedule Extension Request was not filed on the FMC's docket until November 13, 2025.

Reports, dated August 8 and September 26, 2025, and the Schedule Extension Request, the Parties have already exchanged initial disclosures and initial requests for production and interrogatories as well as objections and initial responses thereto. There are at present no outstanding issues therefrom necessitating the Presiding Officer's intervention.

3. Consistent with Paragraph 31 of the Presiding Officer's July 9, 2025 Initial Order in this case, the Parties have agreed to a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case. A copy of such proposed order was filed with the Commission on September 15, 2025, which the Presiding Officer entered, as modified (the "Protective Order"), by order dated September 16, 2025. Moreover, following good faith discussions, the Parties have also agreed to a protocol regarding electronically stored information to govern the identification, collection, and exchange of potentially relevant information in this action (the "ESI Protocol"). Following agreement to the Protective Order and ESI Protocol, the Parties are currently in the process of identifying and collecting electronically stored information from likely relevant custodians.

4. For Complainant's part, Complainant has collected more than 31,000 documents loaded after deduplication from nine custodians as well as network share drives and other sources of data as a part of its document and data collection process. Since then, Complainant has been working closely with its e-discovery partner to expedite this process, and significant progress has been made notwithstanding the impact of the 2025 government shutdown on discovery proceedings. Complainant completed its first production of approximately 1,400 documents to Respondent on October 30, 2025. Focus has now shifted to the remaining core population of approximately 29,000 documents, which are undergoing a rigorous process of initial screening procedures for responsiveness, confidentiality, and privilege. Although Complainant continues to

work diligently, the volume of documents and the requirement for a careful, manual review for responsiveness, confidentiality, and privilege—a process that necessarily requires substantial time and care—necessitates additional time to complete this core stage of discovery before the larger production can be concluded.

5. For Respondent's part, Respondent has on collected almost 300,000 deduplicated documents and overall network share drives, individual laptop and phone data collection from nine custodians located in several States of the US and in foreign countries is underway and very near completion, with the US based custodians now completed. But as noted above the review process is extremely time-consuming. Yang Ming is working with its e-discovery partner to streamline the process as much as possible and it is believed that will increasingly assist going forward. However, there is no question the entire process is time, cost and effort intensive.

6. The Parties have been diligent in managing and working towards producing documents. As previously reported, the Parties have conferred to clarify and narrow discovery requests in order to achieve focused responses and productions. These efforts, including working diligently through the challenges presented by the 2025 government shutdown, have aimed to avoid "data dumps," i.e., the production of documents which contain search terms from the ESI Protocol, but which are not substantively responsive. These efforts have involved greater scrutiny during the review process and accordingly require a greater expenditure of time.

7. As a part of the ongoing review and rolling productions process, Complainant and Respondent are working to review the substantial amount of remaining documents that were pulled in by each Party's ESI Protocol's terms, to isolate potentially overinclusive terms for further discussion, to remove non-responsive documents and data, and to continue to make rolling productions.

8. At this time, the parties are unable to provide a meaningful estimate of the potential number of expert reports or depositions that will be planned in this case but do anticipate submitting respective expert reports and taking respective depositions in line with the practice in other comparable cases. *See, e.g., Bed Bath & Beyond Inc. v. Yang Ming Marine Transport Corp.*, FMC Docket No. 23-10.

9. In conclusion, despite the commitment and efforts of both Parties during the period affected by the 2025 government shutdown, the substantial volume of documents and the need for thorough review, an extension of time as contemplated by the Schedule Extension Request is necessary to ensure that both parties can complete their discovery obligations effectively.

Dated: December 12, 2025

Respectfully submitted,

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